

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chanan Berkovits	Team: Team # 4	CCRB Case #: 201108436	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/29/2011 11:20 PM	Location of Incident: Featherbed Lane and Macombs Road	18 Mo. SOL 12/29/2012	Precinct: 46		
Date/Time CV Reported Thu, 06/30/2011 8:49 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/30/2011 8:49 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Albert Rodriguez	02441	933532	PBBX
2. POM Eugene Donnelly	11586	948906	PBBX
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Evan Johnson	11101	949143	PBBX
2. POM Andrew Greges	28881	949061	PBBX
3. POF Sharlene Valentin	10860	949375	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Eugene Donnelly	Abuse: PO Eugene Donnelly searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . SGT Albert Rodriguez	Abuse: Sgt. Albert Rodriguez supervised the stop of § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . An officer	Abuse: An officer searched § 87(2)(b)	C . Officer(s) Unidentified
D . An officer	Abuse: An officer frisked § 87(2)(b)	D . Alleged Victim Uncooperative
§ 87(2)(g)		

Case Summary

§ 87(2)(b) filed a complaint with the CCRB over the phone on behalf of herself, her boyfriend, § 87(2)(b) and her friend § 87(2)(b) on June 30, 2011 (encl. 13-14).

On June 29, 2011, at approximately 11:20 p.m., PO Evan Johnson of the 46th Precinct arrested § 87(2)(b) near the intersection of Featherbed Lane and Macombs Road in the Bronx. The following allegations resulted:

- **Allegation A – Abuse of Authority:** PO Eugene Donnelly searched the car in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g) it is recommended that **Allegation A be closed as unsubstantiated.**
 - **Allegation B – Abuse of Authority:** Sgt. Albert Rodriguez supervised the stop of § 87(2)(b) and § 87(2)(b) § 87(2)(g) it is recommended that **Allegation B be closed as unsubstantiated.**
 - **Allegation C – Abuse of Authority:** An officer searched § 87(2)(b) § 87(2)(g) it is recommended that **Allegation C be closed as officer unidentified.**
 - **Allegation D – Abuse of Authority:** An officer frisked § 87(2)(b) § 87(2)(g) it is recommended that **Allegation D be closed as victim uncooperative.**
 - § 87(2)(g), § 87(4-b)
- § 87(2)(b)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is § 87(2)(b) *She is a white female who stands § 87(2)(b), and has blond hair and brown eyes.* § 87(2)(b)

§ 87(2)(b) provided a telephone statement on July 8, 2011 (encl. 20). § 87(2)(b) was interviewed at the CCRB on July 20, 2011 (encl. 21-25). Her statements were consistent. On June 29, 2011, at approximately 11:20 p.m., § 87(2)(b) was in the backseat of her car. § 87(2)(b) s boyfriend, § 87(2)(b) was sitting in the front passenger's seat, and her friend, § 87(2)(b) was driving. § 87(2)(b) s toddler son was sitting in the back with her. § 87(2)(b) and company had come from her home in New Jersey, and were accompanying § 87(2)(b) on some errands he had to run in New York City. § 87(2)(b) parked near the intersection of Featherbed Lane and Macombs Road in the Bronx. § 87(2)(b) parked the car legally

parallel to the curb, but § 87(2)(b) did not know what kind of a parking space it was. § 87(2)(b) exited the car and went into a nearby candy store. While she waited for § 87(2)(b) to return, § 87(2)(b) was not doing anything.

Approximately five minutes after he left, § 87(2)(b) approached the car again. At the same time, uniformed officers, identified through the investigation as PO Evan Johnson, PO Eugene Donnelly, PO Andrew Greges, and Sgt. Albert Rodriguez of Patrol Borough Bronx, arrived in a marked van. The officers exited the van and approached the front passenger's seat of § 87(2)(b)'s car. PO Johnson was a white or Hispanic male with a medium build, in his 20s, who had dark hair. § 87(2)(b) could not describe PO Johnson any further. PO Donnelly was a white male who stood approximately 5'6"-5'7" tall, had a medium build, was in his 20s, and had light brown hair. PO Greges and Sgt. Rodriguez were white male officers, but § 87(2)(b) could not describe them any further. Initially during her interview, § 87(2)(b) stated that PO Johnson told § 87(2)(b) "Get out of the car." Later in her interview she stated that she did not know which officer told § 87(2)(b) to exit the car. § 87(2)(b) put his hands up by his head with the palms facing outwards. § 87(2)(b) was not holding anything. § 87(2)(b) exited the car. Initially during her interview, § 87(2)(b) stated that the officers and § 87(2)(b) spoke to each other, but she was unable to hear what they said. Later in her interview, she stated that § 87(2)(b) and the officers did not speak to each other.

An officer § 87(2)(b) did not recall which) opened the back door of the car and told § 87(2)(b) to exit and stand at the back of the car. § 87(2)(b) § 87(2)(b) complied. Officers handcuffed § 87(2)(b) and placed him in the van. § 87(2)(b) asked why § 87(2)(b) was being arrested, and an officer § 87(2)(b) did not recall which) told her that § 87(2)(b) had been in possession of a knife. § 87(2)(b) had previously bought § 87(2)(b) a utility knife which could not be flicked open or opened by force of gravity. § 87(2)(b) did not see this knife at any point during the incident, and did not know where in the car it was located. PO Johnson told § 87(2)(b) to wait at the back of the car until a female officer arrived. PO Donnelly searched § 87(2)(b)'s car by looking in the glove compartment, in the center console and under the front seats. PO Donnelly also searched § 87(2)(b)'s purse which was on the floor of the car in front of where she had been sitting. PO Donnelly also opened smaller containers inside § 87(2)(b)'s purse, including a smaller antique purse.

Approximately ten minutes after § 87(2)(b) had exited the car another officer arrived. This officer was a Hispanic female who stood approximately 5'5"-5'7" tall, weighed approximately 120-130 pounds, was in her 20s, had dark curly shoulder-length hair, and was dressed in uniform. § 87(2)(b) did not see the vehicle in which this officer arrived. This officer patted down § 87(2)(b)'s legs, her upper body, under her arms, and under her hair. The female officer grabbed the bottom of § 87(2)(b)'s bra and shook it. The female officer then reached under § 87(2)(b)'s shirt and placed her hand between § 87(2)(b)'s bra and her person. The female officer did not make any other physical contact with § 87(2)(b). While the female officer was frisking and searching § 87(2)(b), § 87(2)(b) approached the officers and asked, "What's the problem?" An officer § 87(2)(b) could not recall which) asked § 87(2)(b) for his driver's license, and he provided it. PO Johnson asked § 87(2)(b) where he was going, where he had come from, and what he was doing in the area. § 87(2)(b) answered the questions truthfully. An officer whom § 87(2)(b) could not identify made physical contact with § 87(2)(b). § 87(2)(b) weighs approximately 300-400 pounds, and consequently, his body was blocking § 87(2)(b)'s view of the officer with

whom he was interacting. Therefore, § 87(2)(b) was unable to see what physical contact the officer made with § 87(2)(b). The officers told § 87(2)(b) and § 87(2)(b) to leave.

§ 87(2)(g)
§ 87(2)(b). On March 8, 2012, a please call to arrange to view photos letter was mailed to § 87(2)(b). As of July 12, 2012, this letter has not been returned to the CCRB by the US Postal Service. On March 12, 2012, a call was placed to § 87(2)(b) but the line was busy. On April 2, 2012, § 87(2)(b) contacted the investigator and stated that she did not know when she would be available to view photos. She stated that she would contact the investigator within one week to schedule photo viewing. On April 17, 2012, a second call was placed to § 87(2)(b) and she stated that she still did not know when she could view photos. § 87(2)(b) was instructed to contact the investigator by April 20, 2012. On April 20, 2012, a third call was placed to § 87(2)(b) but the line was busy. As of July 12, 2012, § 87(2)(b) has not contacted the CCRB.

Victim: § 87(2)(b)

- § 87(2)(b) is § 87(2)(b). He is a white male who § 87(2)(b) and has brown hair and green eyes. § 87(2)(b).

§ 87(2)(b) was interviewed at the CCRB on July 20, 2011 (encl. 19). On June 29, 2011, at approximately 11:20 p.m., § 87(2)(b) was sitting in the front passenger seat of his fiancé, § 87(2)(b) § 87(2)(b)'s, car. § 87(2)(b) was sitting in the backseat with their toddler son. § 87(2)(b)'s friend, § 87(2)(b) was driving. § 87(2)(b) parked near the intersection of Featherbed Lane and Macombs Road in the Bronx. § 87(2)(b) parked the car legally and parallel to the curb. § 87(2)(b) exited the car and entered a candy store. § 87(2)(b) and § 87(2)(b) remained in the car. § 87(2)(b) was wearing black cargo shorts. Inside § 87(2)(b)'s front right shorts pocket was a black folding knife. The knife was approximately 4-5 inches long. The blade of the knife folds into the handle, and has to be unfolded by hand. There are no buttons which extend the blade, and § 87(2)(b) has never been able to open it using the force of gravity. § 87(2)(b) sat with his hands in his pockets. He did not remove his hands from his pockets. § 87(2)(b) did not take out any of the items inside his pockets.

Approximately five minutes after § 87(2)(b) exited the car, approximately four uniformed officers, identified through the investigation as PO Evan Johnson, PO Eugene Donnelly, PO Andrew Greges, and Sgt. Albert Rodriguez of Patrol Borough Bronx, arrived in a marked van. The officers exited the van. PO Donnelly and PO Johnson approached the front passenger's side of § 87(2)(b)'s car. PO Donnelly was a white male who stood approximately 5'9" tall, had a muscular build, was approximately 26-27 years old, and had dark brown hair. PO Johnson was a white male who stood approximately 5'9" tall, was approximately 26-27 years old, and had dark brown or black hair. PO Greges and Sgt. Rodriguez approached the driver's side of the car. PO Greges was a Hispanic male who stood approximately 6'2" tall, weighed approximately 200-230 pounds, was in his 30s, and had dark brown or black hair. PO Greges exited from the driver's seat of the van. Sgt. Rodriguez was a white or Hispanic male who stood approximately 5'10"-6'0" tall, had a muscular build, was in his 20s, and had brown hair. PO Donnelly told § 87(2)(b) to exit the car. § 87(2)(b) complied. PO Donnelly told § 87(2)(b) to remove his hands from his pockets and empty his pockets, and he complied. PO Johnson took § 87(2)(b)'s knife and opened it using a flick of his wrist and the force of gravity. PO Donnelly handcuffed § 87(2)(b) § 87(2)(b) asked why he was being

arrested, and PO Donnelly said that he was being arrested for possessing the knife.

The officers placed § 87(2)(b) in the back of their van. The officers left the doors of the van open. Approximately ten minutes after the first group of officers arrived, a patrol car containing two uniformed officers arrived. § 87(2)(b) did not see the number of that car. One officer was a Hispanic female who stood approximately 5'5"-5'6" tall, weighed approximately 130-140 pounds, had dark brown hair, and was in her 20s. The second officer was a white or Hispanic male who stood approximately 5'9"-5'10" tall, had a medium build, was bald, and was in his 30s. § 87(2)(b) exited the candy store. Officers told § 87(2)(b) to exit the car, and she complied. The female officer searched § 87(2)(b) by reaching under her shirt. § 87(2)(b) did not see the female officer make any other physical contact with § 87(2)(b). § 87(2)(b) looked away from § 87(2)(b) and observed an officer frisking § 87(2)(b). § 87(2)(b) could not recall which officer frisked § 87(2)(b). This officer felt the outside of § 87(2)(b)'s clothing on his chest and legs. The officer did not make any other physical contact with § 87(2)(b). The officer asked § 87(2)(b) for his identification. Officers had additional conversation with § 87(2)(b) and § 87(2)(b) but § 87(2)(b) was not able to hear what specifically they said.

PO Donnelly entered and searched the passenger's side of § 87(2)(b) car. Either PO Johnson or PO Sgt. Rodriguez searched the driver's side while the other remained standing outside of the car, but § 87(2)(b) could not recall which officer performed which action. The officers searched the glove compartment, the center console, under the front seats, and on top of the backseats. § 87(2)(b) was arrested and charged with § 87(2)(b).

§ 87(2)(g)
§ 87(2)(g)
On March 8, 2012, a please call to arrange to view photos letter was mailed to § 87(2)(b). On March 23, 2012, this letter was returned to the CCRB by the US Postal service as "No such number; unable to forward." On March 12, 2012, a call was placed to § 87(2)(b) but the line was busy. On April 2, 2012, § 87(2)(b) contacted the investigator and stated that she would have § 87(2)(b) contact the investigator. On April 17, 2012, a second call was placed to § 87(2)(b). The investigator spoke to § 87(2)(b) because § 87(2)(b) was unavailable. She stated that she still did not know when she and § 87(2)(b) could view photos. § 87(2)(b) was instructed to have § 87(2)(b) contact the investigator by April 20, 2012. On April 20, 2012, a third call was placed to § 87(2)(b) but the line was busy. As of July 12, 2012, § 87(2)(b) has not contacted the CCRB.

Victim: § 87(2)(b)

§ 87(2)(b) provided a telephone statement on July 8, 2011 (encl. 26). He provided an additional telephone statement on October 5, 2011 (encl. 27). § 87(2)(g)
§ 87(2)(g). On June 29, 2011, at approximately 11:20 p.m., § 87(2)(b) was driving with his friends, § 87(2)(b) and § 87(2)(b). § 87(2)(b) parked near the intersection of Featherbed Lane and Macombs Road in the Bronx. § 87(2)(b) exited the car in order to purchase candy from a nearby store. When § 87(2)(b) exited the car, § 87(2)(b) had a knife resting on his lap. § 87(2)(b) entered the store, purchased candy, and exited it.

As § 87(2)(b) was returning to the car, he observed officers, identified through the investigation as PO Evan Johnson, PO Eugene Donnelly, PO Andrew Greges, and Sgt. Albert Rodriguez of Patrol Borough Bronx, exit a van and approach § 87(2)(b) and § 87(2)(b). In his initial statement, § 87(2)(b) stated that officers told § 87(2)(b) and § 87(2)(b) and

§ 87(2)(b) to exit the car. He did not recount this fact in his second statement. § 87(2)(b) asked the officers what was happening. The officers asked § 87(2)(b) who the driver of the car was, and he said that he was. The officers asked § 87(2)(b) to provide his driver's license. § 87(2)(b) removed his wallet from his pants pocket, and gave the officers his license. The officers asked § 87(2)(b) what he was doing in the area. § 87(2)(b) said that he had grown up in that neighborhood and he was buying lollipops.

The officers instructed § 87(2)(b) to lift up his shirt, and he complied. The officers felt the outside of § 87(2)(b)'s pants, including his pockets and his groin area. An officer reached into the front and back pockets of § 87(2)(b)'s pants as well as his shirt pockets. This officer was a black male who stood approximately 5'7"-5'8" tall, weighed approximately 160-170 pounds, was approximately 35 years old, had black hair, and was dressed in uniform. Sgt. Rodriguez folded down the waistband of § 87(2)(b)'s pants. Sgt. Rodriguez was a white male who stood approximately 6'1" tall, weighed approximately 170 pounds, was approximately 37 years old, and was dressed in uniform. § 87(2)(b) could not describe Sgt. Rodriguez any further. An officer took § 87(2)(b)'s identification back to the officers' van. Meanwhile, an officer was searching § 87(2)(b) and touching her breasts in the process. In his initial phone statement, § 87(2)(b) alleged that officers searched the car and arrested § 87(2)(b). He did not recount these facts in his second statement.

When asked to provide an official statement, § 87(2)(b) stated that while he believed that the officers behaved inappropriately during this incident, he did not wish to be involved in this investigation any further.

NYPD Statements:

Subject Officer: PO EUGENE DONNELLY

- *PO Eugene Donnelly is § 87(2)(b) old. He is a white male who § 87(2)(b) has blond hair and blue eyes.*
- *On June 29, 2011, PO Donnelly worked in uniform from 4:00 p.m. to 12:35 a.m. with PO Greges. He was assigned to marked mobile impact van 8610.*

Memo Book Entries

PO Donnelly did not have any memo book entries regarding this incident (encl. 48-49). PO Donnelly's memo book records that at 6:14 p.m. PO Greges effected an arrest. His next entry was at 12:07 a.m. and pertains to getting gasoline for the van. He did not have any entries from approximately 11:20 p.m.

CCRB Testimony

PO Donnelly was interviewed at the CCRB on December 21, 2011 (encl. 50-51). On June 29, 2011, PO Donnelly was working with PO Greges and no other officers. He was not working with PO Johnson at any point during that day. Sgt. Rodriguez was his supervisor on that night, but he did not recall if he worked with him directly. He did not work with any female officers on that night. He did not recall this incident. At 6:14 p.m. PO Greges effected an arrest. PO Donnelly did not recall if he returned to the 46th Precinct stationhouse immediately after PO Greges effected the arrest. He did resume patrol after PO Greges completed the arrest processing, but he did not recall at what time that was.

PO Donnelly was not in the vicinity of Macombs Road and Featherbed Lane on that night. PO Donnelly was shown photos of § 87(2)(b) and § 87(2)(b). The individuals in these photos were not familiar to him. At the time of his interview, PO Donnelly was shown the arrest report prepared for § 87(2)(b). The information on this report

was not familiar to him. At the time of his interview, PO Donnelly was informed of the details of this complaint. While none of the details were familiar to him, he stated that if a knife was found in a car, all the occupants should have been arrested. PO Donnelly did not frisk or search § 87(2)(b) or § 87(2)(b). He did not see any officer do so. He did not search the car in which § 87(2)(b) and § 87(2)(b) were occupants. He did not see any officer do so.

Subject Officer: SGT. ALBERT RODRIGUEZ

- *Sgt. Albert Rodriguez is § 87(2)(b) old. He is a Hispanic male who § 87(2)(b) has black hair and brown eyes.*
- *On June 29, 2011, Sgt. Rodriguez worked in uniform from 3:50 p.m. to 12:47 a.m. with PO Donnelly and PO Grege. He was assigned as the impact supervisor and operating out of a marked van 8610.*

Memo Book Entries

Sgt. Rodriguez's memo book (encl. 52-53) records that at 11:30 p.m. he returned to the 46th Precinct stationhouse. Sgt. Rodriguez's last memo book entry prior to returning to the stationhouse was at 6:14 p.m.

CCRB Testimony

Sgt. Rodriguez was interviewed at the CCRB on December 27, 2011 (encl. 54-55). On June 29, 2011, at approximately 11:30 p.m., Sgt. Rodriguez was at the 46th Precinct stationhouse completing paperwork. This paperwork was just general paperwork for the officers whom Sgt. Rodriguez was supervising, and it did not pertain to any specific arrest or incident. Sgt. Rodriguez did not recall this incident. He did not recall working with PO Johnson or any female officers on the day of the incident; however, PO Johnson was one of the officers whom Sgt. Rodriguez was supervising on that day. At the time of his interview, Sgt. Rodriguez was shown photos of § 87(2)(b) and § 87(2)(b). The individuals in these photos were not familiar to him. Sgt. Rodriguez was shown the command log entry prepared for § 87(2)(b) but the information in that entry was not familiar to him. He did not recall making that entry. Sgt. Rodriguez was shown that arrest report prepared for § 87(2)(b). The details of that arrest were not familiar to him. Sometimes, Sgt. Rodriguez verifies arrests at the arrest location, and sometimes he verifies them at the stationhouse. Sgt. Rodriguez was shown that the complaint report prepared for § 87(2)(b) lists him as the supervisor on scene in regards to the arrest. Sgt. Rodriguez did not recall being in the vicinity of Macombs Road and Featherbed Lane on the day of the incident, but he believed he must have been if the arrest documents recorded that he was. He believed he may have arrived after the incident was predominantly over. Sgt. Rodriguez was told the details of the incident. These details were not familiar to him. Sgt. Rodriguez did not frisk or search § 87(2)(b) or § 87(2)(b). He did not see any officer do so. He did not search the car in which § 87(2)(b) and § 87(2)(b) were occupants. He did not see any officer do so. He was never aware of any reason to search that car.

Witness Officer: PO EVAN JOHNSON

- *PO Evan Johnson is a white male who § 87(2)(b) has brown hair and brown eyes.*
- *On June 29, 2011, PO Johnson worked in uniform from 4:00 p.m. to 12:35 a.m. with PO Donnelly. He was assigned to impact and operating out of a marked van. He did not recall the number of the van.*

Arrest Reports

The complaint report which PO Johnson prepared for § 87(2)(b) (encl. 28-29) shows that Sgt. Rodriguez was the supervisor on scene at this arrest. The arrest report which PO Johnson prepared for § 87(2)(b) (encl. 30-31) shows that § 87(2)(b) was in possession of a gravity knife in plain view. He was charged with § 87(2)(b).

Property Vouchers

The property vouchers which PO Johnson prepared for § 87(2)(b) (encl. 32-35) show that § 87(2)(b) was in possession of a black gravity knife.

Memo Book Entries

PO Johnson's memo book (encl. 36-38) records that at 11:20 p.m., he arrested § 87(2)(b) at the corner of Macombs Road and Featherbed Lane. § 87(2)(b) was the front passenger in a silver 2008 Kia, and he had a knife on his lap. Sgt. Rodriguez was on the scene.

CCRB Testimony

PO Johnson was interviewed at the CCRB on December 13, 2011 (encl. 39-41). On June 29, 2011, at approximately 11:20 p.m. PO Johnson and PO Donnelly were on patrol in a marked van. There were no other officers in the van with them. They observed a car parked illegally near the intersection of Featherbed Lane and Macombs Road. Featherbed Lane curves at the intersection of Macombs Road, and the car was parked in the curved portion of the street. There were signs indicating that there is no parking in this curved area. There was no driver in the parked car. PO Johnson approached the driver's side of the vehicle, and PO Donnelly approached the passenger's side. § 87(2)(b) was sitting in the front passenger's seat with a knife open on his lap. PO Johnson personally observed the knife, but he could not recall any aspect of its appearance. A female, known to the CCRB as § 87(2)(b) was sitting in the backseat with a baby. Upon observing the open knife, the officers decided to secure it for their safety. PO Donnelly spoke with § 87(2)(b) about the knife, but PO Johnson did not recall their specific conversation. PO Johnson asked § 87(2)(b) what the knife was for. § 87(2)(b) said that he was playing with it, and he did not know it was illegal. PO Johnson did not have any other conversation with § 87(2)(b).

The driver of the car, known to the CCRB as § 87(2)(b) approached the front driver's side of the car. PO Johnson told § 87(2)(b) to wait at the rear of the car, and § 87(2)(b) complied. PO Johnson told § 87(2)(b) to stand at the rear of the car so that the officers could secure the knife. He did not have any other interaction with § 87(2)(b). The officers told § 87(2)(b) to exit the car, and he complied. PO Donnelly handcuffed § 87(2)(b). Neither PO Johnson nor PO Donnelly frisked or searched § 87(2)(b) prior to handcuffing him. Whenever an individual is in possession of a knife, officers handcuff him for their safety. PO Johnson recovered the knife and field tested it. PO Johnson determined that the knife could be opened using centrifugal force, and therefore, it was an illegal gravity knife. Sgt. Rodriguez and his driver, identified through the investigation as PO Andrew Grege of Patrol Borough Bronx arrived at the scene in order to verify the arrest. No other officers were present during this incident. No female officer was ever present during this incident.

§ 87(2)(b) never exited the car. Neither PO Johnson nor PO Donnelly ever interacted with her. Sgt. Rodriguez never interacted with either § 87(2)(b) or § 87(2)(b). PO Johnson did not recall if § 87(2)(b) spoke during this incident. PO Johnson never frisked or searched § 87(2)(b) or § 87(2)(b). He did not see any officer do so. There was no reason to believe that any of the civilians other than § 87(2)(b)

were armed. Locating a knife in car would give officers probable cause to search all the occupants of the car only if they were being uncooperative, being hostile, or making furtive movements. All of the civilians involved in this incident were cooperative and they did not appear to be violent criminals. They did not make any furtive movements. Consequently, the officers did not have probable cause to frisk or search them. PO Johnson did not search § 87(2)(b)'s car nor did he see any officer do so. Initially during his interview, PO Johnson stated that there was no reason to believe that there were any weapons inside the car other than the knife on § 87(2)(b)'s lap. Later in his interview, PO Johnson stated that the presence of a deadly weapon, such as a knife, in a car gives officers probable cause to search the car for their safety because there may be another deadly weapon in the car. During this incident, PO Johnson chose not to search the car because the civilians were cooperative and did not appear to be violent.

Witness Officer: PO ANDREW GREGES

- *PO Andrew Greges is § 87(2)(b) old. He is a white male who § 87(2)(b) has brown hair and brown eyes.*
- *On June 29, 2011, PO Greges worked in uniform from 4:00 p.m. to 12:35 a.m. with PO Donnelly. He was assigned to impact and operating out of marked van 8610.*

Memo Book Entries

PO Greges' memo book (encl. 42-45) records that at 10:56 p.m., two males and one female were stopped on the corner of Featherbed Lane and Macombs Road. At 11:23 p.m., one individual was arrested for § 87(2)(b)

CCRB Testimony

PO Greges was interviewed at the CCRB on April 4, 2012 (encl. 46-47). On June 29, 2011, at approximately 10:56, PO Greges was in a van with PO Donnelly, Sgt. Rodriguez, and other officers whom he could not identify. An officer whom PO Greges could not identify said that he observed an individual with a knife. PO Greges observed three individuals, known to the CCRB as § 87(2)(b) and § 87(2)(b) walking eastbound on Featherbed Lane towards Macombs Road in the Bronx. The civilians were not in a vehicle, and they did not have a vehicle at the incident location. If the individuals were in a vehicle, PO Greges would have noted that fact in his memo book. PO Greges knew that § 87(2)(b) was carrying a gravity knife, but he could not describe it in any further detail. PO Greges believed that officers had observed the knife because part of it was protruding from § 87(2)(b)'s pocket, but PO Greges never observed the knife himself.

PO Donnelly and other officers whom PO Greges could not identify approached § 87(2)(b) and § 87(2)(b). PO Greges observed the surrounding area to ensure that no other individuals approached and attempted to interfere with the officers. PO Greges did not approach § 87(2)(b) and § 87(2)(b). An officer whom PO Greges could not identify removed the knife from § 87(2)(b)'s pocket. PO Greges did not know in what pocket the knife was located. § 87(2)(b) was placed under arrest and searched. Other than the pocket where the knife was located, no part of § 87(2)(b)'s person was searched prior to his arrest. PO Greges did not know who was § 87(2)(b)'s arresting officer. The officers had no further interaction with § 87(2)(b). PO Greges did not recall if officers interacted with § 87(2)(b) or § 87(2)(b). PO Greges did not recall if any female officer or any other officers came to the incident location. PO Greges did not frisk or search § 87(2)(b) or § 87(2)(b). He did not see any officer frisk or search them. Aside from the fact that § 87(2)(b) was carrying a knife, there was no reason to believe that § 87(2)(b) or § 87(2)(b) was armed. The fact that § 87(2)(b) was carrying a knife

suggested that § 87(2)(b) and § 87(2)(b) were armed because in the Bronx, when one person has a weapon, it is likely that the individuals they are with have weapons as well. PO Greges never searched the civilians' car. He did not see any officer search the civilians' car.

Witness Officer: PO SHARLENE VALENTIN

- PO Sharlene Valentin is § 87(2)(b) old. She is a Hispanic female who § 87(2)(b) has black hair and brown eyes.
- On June 29, 2011, PO Valentin worked in uniform from 4:00 p.m. to 12:35 a.m. with PO Lugo. She was assigned to a footpost.

Memo Book Entries

PO Valentin's memo book (encl. 56-58) records that at 10:30 p.m. she was doing administrative work at the 46th Precinct stationhouse. At 12:35 p.m. she ended her tour.

CCRB Testimony

PO Valentin was interviewed at the CCRB on May 24, 2012 (encl. 59-60). On June 29, 2011, at approximately 10:30 p.m. PO Valentin was doing administrative work at the 46th Precinct stationhouse. She did not go out into the field again that evening. She did not work with PO Johnson, PO Donnelly, or PO Greges on that evening. She was not in the vicinity of Featherbed Lane and Macombs Road that evening. He was not involved in any car stops. At the time of her interview, PO Valentin was shown photos of § 87(2)(b) and § 87(2)(b). The individuals in these photos were not familiar to her. PO Valentin was informed of the details of this incident. None of those details were familiar to her. PO Valentin never frisked or searched § 87(2)(b). She did not see any officer frisk or search her.

Additional Memo Books

No officer matching the description of the female officer involved in this incident and working a relevant uniformed assignment had any memo book entries regarding this incident (encl. 61-82).

NYPD Documents

46th Precinct Roll call

The roll call for June 29, 2011 (encl. 84-92) shows that the following Hispanic female officers were working uniformed assignments at the time of the incident: PO Carrasquillo was assigned to sectors IJK. PO Duran was assigned to Housing Conditions. PO Valentin, PO Guzman, PO Hyman (Female black), PO Ferraro, PO Figueroa, and PO Lugo were all assigned to impact.

Officer Photos

Photos of PO Figueroa, PO Lugo, PO Ferraro, PO Duran, and PO Carrasquillo show that they all match the description of the female officer who searched § 87(2)(b) (encl. 107-116).

46th Precinct Stop and Frisk Log

The stop and frisk log from June 29, 2011, does not record any stop and frisk reports prepared for § 87(2)(b) or § 87(2)(b) (encl. 93-98).

Warrant Checks

MISD search for warrant checks conducted for § 87(2)(b) and § 87(2)(b) yielded only one result. This warrant check was conducted by PO Greges (encl. 99-103).

Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings .

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming assault, battery, excessive use of force, violation of civil rights, false imprisonment, false arrest, malicious prosecution, negligence, abuse of process, negligent retention and hiring, loss of services, loss of earnings, and attorneys' fee arising from criminal action and seeking an unspecified amount as redress (encl. 119-120).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (encl. 10-12).

Subject Officers CCRB History

- Sgt. Rodriguez has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 7).
- PO Donnelly has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 8-9).

Conclusion

Identification of Subject Officers

- § 87(2)(b) stated that the officer who initially spoke to him searched the car. PO Johnson stated that PO Donnelly was the officer who initially spoke to § 87(2)(b) § 87(2)(b) described the officer who searched the car as a white male who stood approximately 5'9'' tall, had a muscular build, was approximately 26-27 years old, and had dark brown hair. § 87(2)(b) described the officer who searched the car as a white male who stood approximately 5'6''-5'7'' tall, had a medium build, was in his 20s, and had light brown hair. PO Eugene Donnelly is § 87(2)(b) old. He is a white male who stands § 87(2)(b) and has blond hair blue eyes. § 87(2)(g)
- § 87(2)(b) was unable to specify which officer told her to exit the car. § 87(2)(b) stated that multiple officers asked him for his ID and asked him from where he was

PO Donnelly. § 87(2)(g) [REDACTED]

- _____
- _____

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(b) and § 87(2)(b) stated that PO Donnelly searched § 87(2)(b)

§ 87(2)(b)'s car. § 87(2)(b) corroborated their account. PO Donnelly denied searching the car, and the other officers corroborated his account. § 87(2)(g)

It is therefore recommended that **Allegation A be closed as unsubstantiated.**

Allegation B – Abuse of Authority: Sgt. Albert Rodriguez supervised the stop of § 87(2)(b) and § 87(2)(b)

All the civilians stated that an officer told § 87(2)(b) to exit her car and stand at the back of it and that officers asked § 87(2)(b) for his ID when he returned to the car. All the officers interviewed denied asking § 87(2)(b) to exit the car, and they denied stopping § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegation B be closed as unsubstantiated.**

Allegation C – Abuse of Authority: An officer searched § 87(2)(b)

§ 87(2)(b) stated that an officer felt the outside of her clothing and reached under her bra. § 87(2)(g)

She did not cooperate with the investigation's attempts to schedule a photo viewing. § 87(2)(g)

It is therefore recommended that **Allegation C be closed as officer unidentified.**

Allegation D – Abuse of Authority: An officer frisked § 87(2)(b)

The civilians alleged that an officer felt the outside of § 87(2)(b)'s clothing. When asked to provide an official statement, § 87(2)(b) stated that he did not wish to participate in the investigation. It is therefore recommended that **Allegation D be closed as victim uncooperative.**

§ 87(2)(g), § 87(4-b)

Team: 4

:

Investigator: _____
Signature

Chanan Berkovits
Print

July 26, 2012
Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date